IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE (GENERAL JURISDICTION DIVISION, COURT 12) ACCRA, HELD ON THE 11TH DAY OF APRIL 2025 BEFORE HIS LORDSHIP JUSTICE AYITEY ARMAH-TETTEH

SUIT NO: GJ/0124/2017

FRANCIS KUGBLENU - PLAINTIFF/J/CREDITOR/DEFENDANT

VRS

INFO SOURCE GH LTD - DEFENDANTS/J/DEBTORS

AND

FIRST RESPONSE LIMITED - CLAIMANTS/PLAINTIFFS
COMSYS GH LTD

PARTIES: - PLAINTIFF PRESENT
DEFENDANTS ABSENT
CLAIMANTS REPRESENTED BY REV. REMI GHARBIN

COUNSEL: - DIANA VOSKI KATAMANI FOR YAW BOAFO, ESQ., FOR THE PLAINTIFF/J/CREDITOR PRESENT
KWAME AKYIANU FOR THE 1ST CLAIMANTS PRESENT
PATRICIA ADDY WITH TERENCE ENOCH ADJEI, ESQ., AND YAW ANING BOADU FOR FRED DOTSE FOR THE 2ND CLAIMANTS PRESENT

JUDGMENT

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[1] On 1st February 2017, the Plaintiff/Judgment/Creditor/Defendant ('Plaintiff') sued out a Writ of Summons against the Defendant/Judgment/debtor ('Defendants ') claiming the following reliefs:

a. Payment of the sum of Gh¢113,663.05 being the balance of sums of money expended on the Defendants by the Plaintiff.
b. Interest on the said Gh¢113,663.05 at the prevailing commercial bank from January 2016 till date of final payment.
c. Payment of the sum of USD$17,566.00 being sums expended on the Defendants by the Plaintiff.
d. Interest on the said USD$17,566.00 at the prevailing Commercial bank rate from January 2016 till date of final payment.
e. Return of the Plaintiff's three IBM Server Rocks, three 42 U Rocks + 1KVA UPS @ C25B and one APC SKA UPS in the possession of the Defendants.
f. Costs

[2] On 15th December 2021, the Plaintiff obtained judgment on all the reliefs claimed against the Defendants. On the same day, the Plaintiff/Judgment/creditor filed an entry of Judgment and had it served on the Defendants. Defendants failed to honour the judgment debt and as a consequence, Plaintiff initiated the execution process to recover the judgment debt. The Plaintiff filed a writ of Fieri Facias and attached House No. 14 Oak Lane, Old Ashongman and vehicle with registration numbers UW 1979 - 20, GE 3216-09, GW 1609-10, GT- 7052-Y and GR 3154-17 in the execution of the judgment.

[3] Upon the attachment of the properties in execution of the judgment, **First Response Limited and Comsys Gh. Ltd. (Claimants)** on 12th September 2023, filed a Notice of Claim, claiming an interest in vehicles with registration numbers UW 1979- 20 and GE 3216-09. The Plaintiff disputes the claim.

[4] When the Registrar invited the parties under Order 44 Rule 12(4) of the CPR C.I. 47, the Court ordered the parties to file their respective Witness Statements to the Court for the issue between them to be determined.

[5] As the Plaintiffs in the interpleader proceedings, the Claimants called one Derick Etornam Donkor to testify, and no other witnesses were called. The Plaintiff as Defendant in the interpleader proceedings, testified for himself and subpoenaed an Official of the Driver and Vehicle Licensing Authority as his witness.

[6] The only issue for determination is whether vehicle numbers UW 1979- 20 and GE 3216-09 are the properties of the Claimants and cannot be seized in execution of the judgment obtained against the Defendants.

[7] The Plaintiff has attached two vehicles in execution of the judgment obtained against the Defendants. The Claimants have filed Notice of Claim asserting that they own the vehicles attached and that they are not the property of the Execution Debtor and, as a consequence, cannot be attached in execution of the Judgment. In interpleader proceedings, the Claimant, who is the Plaintiff, claims ownership of the attached vehicles and carries the burden of proof to establish the claim he asserts.

[8] The Statutory basis of the burden for the Claimants to establish their claim is found in Sections 12,13,14, and 17 of the Evidence Act (NRCD 323)

[9] In **Wrangler Ghana Ltd v. Spectrum Industries Pvt. Ltd, Lands Commission** [2023] DLSC 16164, the Court per Asiedu JSC held as follows**:**

> Thus, within the meaning of sections 12,13,14 and 17 of NRCD 323 as quoted above, whenever a party to a civil suit makes a positive averment which is crucial to a claim or defence which he had asserted in his pleading and which had been denied by his opponent and the party wishes to succeed on that claim or defence,

then the law enjoins that party to adduce that kind of credible evidence, in relation to the assertion made, within the meaning of section 17 as quoted above, which will establish that degree of belief in the mind of the court, in accordance with the provision contained in section 12 of NRCD 323, that the existence of the fact(s) which he had been asserted (but which had been denied by his opponent) is more probable than its non-existence.

[10] In his Witness Statement that was adopted as his evidence-in-chief, Derick Etornam Donkor testified that the vehicles of the Claimants were attached in execution of the judgment obtained against the Defendants. He testified further that the Claimants were not parties to the suit and therefore the vehicles cannot be attached in execution of the judgment obtained by the Plaintiff against the execution debtor. He testified further that Citron CA, with registration number UW 1979-20 was bought by First Response from Silver Star Auto Limited on an instalment payment. In support of their claim, he tendered in evidence exhibit H series, J and K.

[11] In her written address, Counsel for the Claimants submitted that the Claimants rely on Exhibits H,J and K of their witness Statement, which comprise Form A and Vehicle Registration Certificate (Form C), constituting prima facie proof of ownership. These documents were prepared in accordance with Regulation 2 of the Road Traffic Regulation, 2012 (L.I. 2180).

[12] I am unable to agree with the Counsel for the Claimant on her submission. Nothing on the face of exhibits H, J and K shows that the Claimants are the owners of the two vehicles attached in execution of the judgment.

[13] Exhibit H is DVLA Form A in respect of the vehicle with registration number UW 1979-20, H1 is a Silver Star Application Letter to DVLA requesting for special number. H2, H3 and H4 are GRA Custom Division documents in respect of the vehicle with

registration number UW 1979-20. Exhibit J is a Vehicle Examination Certificate in respect of the vehicle and is in the name of Silver Star Auto Limited.

[14] Regulation 4(1) and (7) of L.I. 2180 provide as follows:

4(1) Subject to the other provisions of this regulation, the Licensing Authority shall, on receipt of the application and the prescribed fees, register the particulars of the owner of the vehicle.

Where a motor vehicle is registered under these Regulations, the Licensing Authority shall issue in respect of that motor vehicle, a Vehicle Registration Certificate as set out in Form C of the First schedule which specifies the following:

(i) The name and address of the owner,

(ii) The date and place of registration,

(iii) The particulars of the motor vehicle,

(iv) Particulars of the road worthiness certificate of the motor vehicle and the date of its expiry, and

(v) Other particulars that the Licensing Authority may specify.

The effect of the above provision is that when a vehicle is licensed under the DVLA, the name of the owner and other particulars of the vehicle and these particulars will have to appear on a Vehicle Registration Certificate. It is the name that appears on the Vehicle Registration Certificate as the owner of the vehicle that will be presumed to be the owner of that Vehicle.

[15] All the vehicle documents tendered by the Claimants in respect of the vehicle with registration number UW 1979-20 are in the name of Silver Star Auto Limited. Exhibits H5 and H6 are receipts for payments to Silver Auto Limited, and the account details of the payments are in the name of First Response Limited and are in respect of a Citron C4.

There is no chassis number on exhibits H5 and H6. What identifies a specific vehicle from other vehicles of the same make and model is the registration number or chassis number of the vehicle, and neither appears on Exhibits H5 and H6.

[16] The Plaintiff testified that First Response Limited is not the owner of the Citroen Vehicle with registration number UW 1979-20. According to the Plaintiff, it is owned by the 2nd Defendant. He attached the DVLA Testing Report Card and Insurance Policy Form from Activa as Exhibits 5 and 5A, respectively. He also tendered Exhibit 6. Exhibit 6 is a search result from the Office of Registrar of Companies, which shows that First Response is owned by 2nd Defendant Frederick Falade.

[17] From Exhibit 5, the Testing Report Card, the owner of the vehicle UW 1979-20 is Frederick Falade the 2nd Defendant. Exhibit 5A, the Insurance Policy from Activa, is in respect of the same vehicle number UW 1979-20, and the insured is Frederick Falade the 2nd Defendant. Exhibits H5 and H6 are receipts of payments to Silver Auto Limited, and the account details of the payments are in the name of First Response Limited and are in respect of a Citron C4. There is no chassis number on exhibits H5 and H6. What identifies a specific vehicle from other vehicles of the same make or model is the registration number or chassis number of the vehicle, and neither appears on Exhibits H5 and H6.

[18] On the evidence, the 2nd Defendant Frederick Falade is the owner of First Response Limited. Payment from First Response Limited for the purchase of a vehicle for its owner in the absence of any further evidence in my view does not establish that the entity that paid for the vehicle is the owner of the vehicle, especially in the face of Exhibits A (tendered by an Official from DVLA subpoenaed by Plaintiff) and 5 that shows the Registration Documents of the vehicle has 2nd Defendant as the owner of Vehicle with Registration number UW 1979-20. In my view, Exhibits H5 and H6 cannot be said to relate to the vehicle.

[19] The Plaintiff's subpoenaed witness, Mr Adanu Forgah, a senior Technician Engineer with the DVLA, testified and produced the original Vehicle Registration Certificate of Citroen with registration number UW 1979-20 as exhibits A and A1. The name that appears as the owner of the vehicle on Exhibit A and A1 is the 2nd Defendant Frederick Falade. Exhibits A and 5 are Official Documents from DVAL, and they bear the name of the 2nd Defendant as the owner of the vehicle. The effect of the Exhibits A and 5 are that the original owner, Silver Star Auto Limited, transferred ownership of the vehicle to 2nd Defendant.

[20] Under cross-examination of Mr. Forgah, this is what he said:

> Q. You have presented documents from the DVLA that proves that the Mitsubishi L200 with vehicle registration No. GE 3216-09 and Citroen CA with registration No. UW 1979 -20 belong to Mr. Falade. Is that not so? Kindly take a look at the documents you presented to the court, what shows that the vehicles belong to Mr. Frederick Falade or the 1st Defendant.
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> A. All these documents are with us and saved on our database. These are certified true copy. The Exhibit B is for Info Source and Exhibit A1 is for Frederick Falade.
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> X X X X X
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> Q. I put it to you that, you are not being truthful to this court because DVLA would definitely comply with a court order which requires it to provide evidence of ownership of a vehicle when it is in dispute in a court case.
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> A. DVLA had followed up the transfer process into Info Source Limited and Frederick Falade duly transferred and certified that he is the true owner of the two cars. From our checks road worthy certificate is regularly renewed by Infor Source Limited and Frederick Falade.

[21] The only documents that bore the name of First Response Limited are Exhibits H5 and H6, which I have said do not indicate that they relate to vehicle number UW 1979-20. The Claimants fail to produce any documentary evidence that establishes that the vehicle was owned by the Claimant First Response. They are unable to establish that the Claimant First Response is the owner of the vehicle. The effect is that the Claimants have failed to discharge the burden of proof placed on them by sections 12,14, and 17 of the NRCD 323. See also **Mojalagbe v Larbi & Ors** [1959] GLR 190 on what constitutes proof in law.

[22] On the evidence, I am satisfied that the vehicle with registration number UW 1979 -20 is the bona fide property of 2nd Defendant and the same can be seized in execution of the judgment obtained against him by the Plaintiff.

[23] With regards to Mitsubishi LD200 with registration number GE 3216-09, it is the claim of the Claimants that it is the property of Comsys Limited and not the property of the Execution Debtors and as such, it cannot be attached in execution of judgment obtained by the Plaintiff against the Defendants. Derick Etornam Donkor testified that the vehicle Mitsubishi LD200 with registration number GE 3216-09 is the Bonafide property of Comsys Ghana Limited. The witness tendered in evidence exhibit 'K' as evidence of ownership of the said vehicle with registration number GE 3216-09.

[24] Exhibit K is DVLA Form V, which is the form of application to register a motor vehicle. The make is Mitsubishi and the Model is L200. The registration number on it is GE 3216-09, and the particulars of the vehicle owner have CFAO Motors as the Applicant. The Customs Division of GRA documents have CFAO Ghana Limited as the importer of the said vehicle. Exhibit K and the Customs documents cannot, with the widest imagination, be said to be evidence to establish that Comsys is the bona fide owner of Mitsubishi L200 with registration number GE 3216-09.

[25] The Execution Creditor's subpoenaed witness tendered in evidence Exhibit B. Exhibit B is vehicle information from the Licensing Authority that is mandated to register and license motor vehicles in Ghana. The registration number of the vehicle is GE 3216- 09, and the make and model of the vehicle is Mitsubishi LD200. The owner is Info Source Ltd.

[26] On the evidence, the Claimants failed to establish that the two vehicles with registration numbers UW 1979 - 20, GE 3216-09 are owned by the Claimants.

[27] I therefore dismiss the Claim of the Claimants. I award costs of Ghs15,000 against each of First Response Limited and Comsys Limited and in favour of the Execution Creditor.

(Sgd.)
Ayitey Armah-Tetteh J.
(Justice of the High Court)